

25STCV06016 25STCV06016

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Case Number: 25STCV06016 Hearing Date: August 24, 2026 Dept: 224

Gonzalez v. EBS Foods, LLC

TENTATIVE RULING

Motion to Compel Plaintiff's Initial Responses to Requests for Production of Documents, Set One (CRS #6318), is DENIED as MOOT.

Motion to Compel Plaintiff's Initial Responses to Form Interrogatories - Employment, Set One (CRS #0139), is DENIED as MOOT.

Motion to Compel Plaintiff's Initial Responses to Special Interrogatories - Employment, Set One (CRS #0139), is DENIED as MOOT.

Defendant's Motion to Deem Requests for Admissions (CRS #2338) filed by Defendant EBS Foods, LLC is DENIED as MOOT.

The requests for Sanctions are DENIED for lack of proper notice.

ANALYSIS

Introduction

Plaintiff failed to serve responses to this discovery until August 2026. The parties agree that the request for a court order compelling responses to these three sets of discovery, are moot.

Only sanctions remain at issue.

Legal Standard

California Code of Civil Procedure § 2023.040, specifies the procedural requirements for requests for discovery sanctions under the Civil

Discovery Act, including notice requirements and supporting documentation. The statute provides:

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought."

The statute's use of the mandatory word "shall" and the specific phrase "in the notice of motion" leaves no ambiguity: the identification of the sanctioned parties and the type of sanction must appear in the notice of motion itself. This requirement is not satisfied by including the sanctions request only in the memorandum of points and authorities, a supporting declaration, or elsewhere in the motion papers.

California courts have strictly enforced the notice-of-motion requirement, treating deficient notices as grounds for reversing or voiding sanctions orders. (See *Sole Energy Co. v. Hodges*, (2005) 128 Cal. App. 4th 199 [holding that a terminating sanction was void for failure to provide adequate notice]; *In re Marriage of Fuller*, (1985) 163 Cal. App. 3d 1070 (the Court of Appeal issued a writ of mandate after sanctions were imposed against an attorney who had no notice that sanctions would be sought against him individually.)

Here, Defendant's Notices filed in support of the motions do not indicate who the sanctions are sought against. The Code directs that this information "shall" be included in the Notice.

While the Court agrees with Defendant that Plaintiff's dilatory conduct is unreasonable, and her failure to comply with basic discovery obligations for nearly one year is sanctionable, the Court

must follow the letter of the law requiring proper notice.

Discovery sanctions must be DENIED for lack of proper notice. The Notices fail to specify either the type of sanction, or against whom they are sought.

Conclusion

Motion to Compel Plaintiff's Initial Responses to Requests for Production of Documents, Set One (CRS #6318), is DENIED as MOOT.

Motion to Compel Plaintiff's Initial Responses to Form Interrogatories - Employment, Set One (CRS #0139), is DENIED as MOOT.

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Plaintiff to give notice and proof of service of notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.